

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Arthur Albano	Team: Squad #03	CCRB Case #: 201409541	☐ Force ☒ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Tuesday, 09/16/2014 9:45 PM	Location of Incident: Kings Highway and East 95th Street	18 Mo. SOL 3/16/2016	Precinct: 67
Date/Time CV Reported Tue, 09/16/2014 10:50 PM	CV Reported At: CCRB	How CV Reported: Call Processing System	Date/Time Received at CCRB Wed, 09/17/2014 9:13 AM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Guillermo Militano	07978	954133	PBBN
2. POM Nicola Apadula	26616	954496	PBBN

Officer(s)	Allegation	Investigator Recommendation
A . POM Guillermo Militano	Abuse: PO Guillermo Militano searched § 87(2)(b)	A . Unsubstantiated
B . POM Guillermo Militano	Discourtesy: PO Guillermo Militano spoke rudely to § 87(2)(b)	B . Unsubstantiated
§ 87(4-b) § 87(2)(g)		

Case Summary

At 9:45 p.m. on September 16, 2014, § 87(2)(b) who worked as a livery cab driver, was driving with a fare in the back seat. Two uniformed officers in an unmarked vehicle, identified via investigation as PO Nicola Apadula and PO Guillermo Militano of Patrol Borough Brooklyn North, sounded their sirens and activated their lights, causing § 87(2)(b) to pull over. According to § 87(2)(b) PO Militano approached the driver's side and asked § 87(2)(b) how many phones he had. § 87(2)(b) explained that he had a cell phone and his cab's radio. PO Militano then allegedly requested § 87(2)(b)'s phone and searched through his recent calls (**Allegation A**). According to § 87(2)(b) PO Militano then asked if § 87(2)(b) had been on his phone. When § 87(2)(b) stated that he had not, PO Militano allegedly called him a "fucking liar" (**Allegation B**) and said he'd have to prove he had not used his phone. PO Militano then wrote § 87(2)(b) a summons for violating Vehicle and Traffic Law 1225 C, subsection 2A (Board Review 01), for using a cell phone while driving.

§ 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) rejected mediation as an alternative to resolve his complaint § 87(2)(b).
- A notice of claim inquiry was sent to the New York City Comptroller's office on May 6, 2015. A response to this inquiry will be included in the case file upon its receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- § 87(2)(a) 18 USC § 2721 (a)

Civilian and Officer CCRB Histories

- § 87(2)(b) filed one other complaint with the CCRB, § 87(2)(b).
- PO Militano has been a member of the service for two years and there are no substantiated allegations against him. § 87(2)(g)
- PO Apadula has been a member of the service for one year and this is the first complaint filed against him.

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) stated that he visually observed PO Militano's name from the name plate on his uniform and stated that PO Militano's partner remained on the passenger side throughout the interaction and did not interact with § 87(2)(b) at all. § 87(2)(b) noted that the name, PO Militano, matched the name provided on his summons. § 87(2)(g)

Allegation A-Abuse of Authority- PO Guillermo Militano searched § 87(2)(b)'s cell phone. Allegation B- Discourtesy- PO Guillermo Militano spoke rudely towards § 87(2)(b)

It is undisputed that PO Militano and PO Apadula stopped § 87(2)(b)'s vehicle and PO Militano issued him a summons for using a cell phone while driving. According to § 87(2)(b) PO Militano requested § 87(2)(b)'s phone, which he provided, and PO Militano searched through his recent

calls and asked § 87(2)(b) if he had been on his phone. According to § 87(2)(b) when he stated that he had not, PO Militano called him a “fucking liar” (Board Review 02). § 87(2)(b) did not allege that an officer searched his phone during his original complaint to the CCRB and his phone statement on September 17, 2014 (Board Review 03). § 87(2)(g)

§ 87(2)(b). Originally he stated that the officer requested his phone and upon further questioning § 87(2)(b) stated that he produced the phone to the officer, unprompted (Board Review 02).

§ 87(2)(b) stated that he had a passenger in the back of his cab during this incident, however was unable to produce any information to the CCRB to allow the investigation to identify him.

§ 87(2)(g)

PO Militano did not have an independent recollection of this incident, though he denied using profanity towards § 87(2)(b) § 87(2)(g)

§ 87(2)(b) PO Militano was interviewed approximately four months after the date of this incident, § 87(2)(g) (Board Review 04).

PO Apadula, who did recall this incident, stated that § 87(2)(b) was pulled over for having a black object in his hand, next to his face, while speaking. PO Apadula stated that § 87(2)(b) was then observed subsequent to the stop with his cell phone in his lap. According to PO Apadula, it was for this reason that § 87(2)(b) was summonsed, leaving no reason for § 87(2)(b) to produce his phone and PO Militano to search the recent calls. PO Apadula denied that any officer used profanity towards § 87(2)(b) and further stated that in the several months that PO Apadula and PO Militano had been working together, neither of them had used profanity while speaking to a civilian (Board Review 05).

§ 87(2)(g)

§ 87(2)(b) It is therefore recommended that **Allegations A** and **B** be closed as *unsubstantiated*.

§ 87(4-b), § 87(2)(g)

Pod:

Investigator: _____

	Signature	Print	Date
Supervisor:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date
Reviewer:	_____	_____	_____
	Title/Signature	Print	Date